



File No.: EXP202302319

RESOLUTION OF RECONSIDERATION APPEAL

Having examined the reconsideration appeal filed by XFERA MÓVILES, S.A. (hereinafter, the appellant) against the resolution issued by the Director of the Spanish Agency for Data Protection dated January 24, 2024, and based on the following

FACTS

FIRST: On January 24, 2024, a resolution was issued by the Director of the Spanish Agency for Data Protection in file EXP202302319, in which it was agreed to uphold the claim for the exercise of rights made by A.A.A. (hereinafter the claimant) against the appellant previously claimed.

SECOND: The resolution now being appealed was duly notified to the appellant on January 26, 2024, as evidenced by the acknowledgment of receipt in the file.

THIRD: The appellant has submitted a reconsideration appeal to this Spanish Agency for Data Protection, in which, in summary, several points are made. Namely:

“...This honorable Agency indicates that an infringement of articles 15, 32, and 6.1 of the GDPR is appreciated, when this procedure has only aimed throughout its processing at addressing the right of access of the interested party, that is, only article 15 of the GDPR would be affected, not 32 or 6.1. Therefore, the resolution suffers from a manifest incongruity between what was resolved and the object of the procedure. (...)

As this party has stated and evidenced throughout the procedure, the right of access of the interested party has been fully addressed by providing literal transcriptions of the recordings of the telephone conversations held with our customer service...”

LEGAL GROUNDS

I

Competence

The Director of the Spanish Agency for Data Protection is competent to resolve this appeal in accordance with the provisions of article 123 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP) and article 48.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD).

II

Response to the allegations presented

Regarding the statements made by the appellant, it should be noted on one hand, that they are correct in stating that the transcription of the telephone conversation is perfectly valid, and that the only article that should be reflected in the resolution is article 15 of the GDPR as it pertains to a procedure established in article 64.1 of the LOPDGDD.

On the other hand, it is necessary to highlight that, although the documentation submitted includes a written statement according to which a transcription of one of the calls requested by the claimant was apparently sent, it is also true that the sending of the transcription of the requested conversations has not been evidenced before this Agency, as a complete copy of the document sent to the affected party has not been provided.

III

Conclusion

Having examined the reconsideration appeal presented by the appellant, it will be partially upheld. That is to say, it is upheld regarding the fact that only article 15 is the subject of the claim and it is dismissed regarding the assertion that they have addressed the right since they continue to lack evidence.

In view of the cited provisions and others of general application, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO PARTIALLY DISMISS the reconsideration appeal filed by XFERA MÓVILES, S.A. against

the Resolution of this Spanish Agency for Data Protection issued on January 24, 2024, in file EXP202302319. Regarding the right of access, it is dismissed and upheld regarding the fact that only compliance with article 15 will be addressed in the claim.

SECOND: TO NOTIFY this resolution to A.A.A. and to XFERA MÓVILES, S.A.

In accordance with the provisions of article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure, an administrative contentious appeal may be filed within two months from the day following the notification of this act, as provided in article 46.1 of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of article 25 and section 5 of the fourth additional provision of the aforementioned legal text.

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